DANNY HARRY CANUS TAFIREYI
versus
RURAMAI CHAMBUKA

HIGH COURT OF ZIMBABWE
TSANGA J
Harare, 17 August 2026

B Madondo for Applicant
PM Sagwete for Respondent

TSANGA J: This was an application for rescission of judgment in terms of r27 of the High Court Rules, 2021 coupled with an application for condonation and upliftment of bar. The applicant sought to set aside an order granted in maintenance *pendente lite* proceedings on 3 March 2026, contending that the order was granted in default after he had been barred by reason of filing an invalid notice of opposition.

The respondent opposed the application. Her principal contention was that the application is incompetent because the order sought to be rescinded was not a default judgment. She argued that the applicant was present at both earlier hearings, was afforded an opportunity to regularise his defective opposing affidavit, failed to do so, and that the court thereafter proceeded to determine the application as unopposed and granted a final order. She submitted that such an order is appealable or reviewable, and not rescindable.

The primary issue was whether the impugned order constitutes a default judgment capable of rescission under r27. It is common cause that the applicant filed a notice of opposition within the prescribed period. The defect lay not in the lateness of the opposition but in the failure to commission the opposing affidavit. When the defect was raised, the matter was postponed and the applicant was afforded an opportunity to cure it but failed to do so. He nevertheless appeared before the court on both hearing dates. When the defect remained unattended to when the matter was heard on the postponed date, the court upheld the objection to his affidavit.

Law and Factual Analysis

The court was unable to agree with the applicant that he was in default within the contemplation of r27.The mere fact that the application proceeded as unopposed did not, in the circumstances of the present case, render the resultant order a default judgment. The applicant was present at the hearing; the defect in his opposing papers had been raised and considered; and he had previously been afforded an opportunity to cure it. The court thereafter determined the application on the basis that there was no valid opposing affidavit before it. The order was therefore made in proceedings in which the applicant was present, albeit unable to rely upon his defective opposing papers, rather than by reason of his failure to appear. As illustrated in *House of Vengesayi (Pvt) Ltd t/a Vengesayi Architects* v *Minister of Tourism and Hospitality N.O.* HH 36-23, the character of an order depends upon what occurred in the proceedings and the basis upon which the court made its determination.

Rule 27 is triggered only where judgment has been given "in default", as DUBE J expressly stated in *Tigere & Another* v *NICOZ Diamond Insurance Co Ltd & Another* HH 66-17:

> "the notion of rescission can only be applicable to a judgment granted in default."

Where a party is absent and, by reason of that absence, fails to do what was required of him, the resulting judgment may properly be characterised as a default judgment, as illustrated in *Nyandoro* v *Martins (Estate) & Others* HH 17-10.

In addition, rescission cannot be employed as a disguised appeal or review against the correctness of a judicial determination. In the present instance, the applicant is, in substance, contending that the court should not have upheld the objection to his opposing affidavit, but should instead have accepted his explanation and allowed him to participate in the proceedings. That is, substantively, a challenge to the correctness of the court's determination, rather than a complaint that judgment was entered in his absence.

As regards condonation and upliftment of bar, those remedies are ancillary to the principal relief sought. Once the court concluded that the maintenance proceedings culminated in a final order not amenable to rescission, there remained no pending proceeding in which the bar may be uplifted. Those prayers accordingly could not succeed independently.

The respondent sought costs on the legal practitioner and client scale. Although the application was unsuccessful, the court was not persuaded that the applicant's conduct

warrants punitive costs. The application, though misguided, appears to have been brought out of a genuine belief that rescission was the appropriate remedy following the procedural difficulties encountered.

Accordingly, the court dismissed the application with costs on an ordinary scale.

TSANGA J:……..

Mabulala & Dembure, Applicant's Legal Practitioners
Masawi & Partners, Respondent's Legal Practitioners